

Since the gravamen of the complaint in this case is that the prosecutor knew or should have known that certain testimony of a witness called by him was untrue and since—for reasons set forth below—the other allegations in the complaint fail to state a cause of action on any other theory, I concur in the judgment in this case. However, insofar as the majority's opinion implies an absolute immunity from suits for constitutional violations other than those based on the prosecutor's decision to initiate proceedings or his actions in bringing information or argument to the court, I disagree. Most particularly I disagree with any implication that the absolute immunity extends to suits charging unconstitutional suppression of evidence. *Brady v. Maryland*, 373 U. S. 83 (1963).

III

There was no absolute immunity at common law for prosecutors other than absolute immunity from suits for malicious prosecution and defamation. There were simply no other causes of action at common law brought against prosecutors for conduct committed in their official capacity.⁶ There is, for example, no reported case of a suit at common law against a prosecutor for suppression or nondisclosure of exculpatory evidence. Thus, even if this Court had accepted the proposition, which

⁶ Immunity of public officials for false arrest was, unlike immunity of public officials for malicious prosecution, not absolute, 1 Harper & James §§ 3.17 and 3.18; and when prosecutors were sued for that tort, they were not held absolutely immune. *Schneider v. Shepherd*, 192 Mich. 82, 158 N. W. 182 (1916). A similar result has obtained in the lower courts in suits under 42 U. S. C. § 1983 against prosecutors for initiating unconstitutional arrests. *Robichaud v. Ronan*, 351 F. 2d 533 (CA9 1965); *Hampton v. Chicago*, 484 F. 2d 602 (CA7 1973); *Wilhelm v. Turner*, 431 F. 2d 177, 180-183 (CA8 1970) (dictum); *Balistrieri v. Warren*, 314 F. Supp. 824 (WD Wis. 1970). See also *Ames v. Vavreck*, 356 F. Supp. 931 (Minn. 1973).